

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

VISUAL COMFORT & CO., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent*.

DOCKET NO. 24-01

Served: May 14, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER SETTING STATUS CONFERENCE AND INTERIM SCHEDULING ORDER

On January 4, 2024, the Commission issued a Notice of Filing of Complaint and Assignment for this proceeding. On February 6, 2024, Complainant filed an Amended Complaint. On February 20, 2024, Respondent filed its Answer to the Amended Complaint.

On March 6, 2024, the parties submitted a Joint Status Report and Proposed Schedule (“JSR1”) that indicated they participated in a conference with the Commission’s Office of Consumer Affairs and Dispute Resolution Services (CADRS) and had “agreed to mediate.” JSR1 at 1. Pursuant to that agreement they “agreed to a limited exchange of documents to facilitate mediation, after which they [would] participate in a second conference with CADRS in two weeks’ time.” *Id.*

Based on the representations in the JSR1 that included the limited exchange of documents and a planned mediation in mid-March that could have narrowed the issues, the parties’ proposed discovery schedule was found reasonable, despite extending beyond 150 days from the service of Respondent’s answer. Scheduling Order at 1. The parties were “cautioned that delays during discovery or amendments to the schedule may result in shortening the briefing period, which is longer than typically permitted.” *Id.*

On April 3, 2024, the parties sent in a required Second Joint Status Report (“SJR2”), which implied that they were following the schedule, including the exchange of initial written discovery requests on March 27, 2024. They did not indicate that there were any issues maintaining the schedule, or that they had omitted any deadlines in the schedule regarding the production of documents. The JSR2 did not mention whether the scheduled March 11, 2024, limited document exchange or CADRS mediation occurred.

Respondent filed a Motion for Partial Judgment on the Pleadings on March 20, 2024, which was denied on April 30, 2024. Again, there was no indication at that time that the parties were not moving forward with the schedule as ordered. As the parties were reminded in the first Scheduling Order: “[m]otions will not automatically stay other deadlines in the proceeding. If a

motion could impact other deadlines, that should be clearly addressed in the motion and any response.” Scheduling Order at 2-3.

On May 10, 2024, the parties filed a Third Joint Status Report and Request for Extension (“JSR3”), stating that they had followed the Scheduling Order through April 26, 2024, which was the deadline to serve objections and responses to initial written discovery requests, but they had not yet exchanged any documents, contrary to the Scheduling Order deadline of March 15, 2024 for a limited exchange of documents. Scheduling Order at 2. Now, the parties request an extension that would further delay the close of discovery by two months.

As good cause for this two-month extension, the parties assert that they cannot agree on a confidentiality agreement and Proposed Consent Motion for a Protective Order, so “neither Party has yet produced any documents.” JSR3 at 1. They further assert as good cause their continuing “objections to the discovery requests of the other Party” and that they “may need to bring some of them to the attention of the Presiding Officer.” *Id.* at 1-2. Finally, no reason is offered for the proposed extension of service of Complainant’s expert’s report from May 17, 2024, to July 1, 2024, other than it is “behind schedule” due to “[t]he need to resolve discovery issues....” *Id.* at 2.

There is no pending discovery motion, but discovery issues are identified as the primary reason for the requested extension. At this early point in discovery, based on the reasons provided, good cause for such a lengthy extension of the schedule is not established. In order to prevent further delay, the parties are **ORDERED** to appear for a status conference on **Thursday May 16, 2024, at 1:00 pm EDT** to address the discovery, confidentiality, and protective order issues. The parties will receive a Teams meeting link to participate in the conference. Each party should provide the other with a succinct summary of the discovery issues and their position, with a copy emailed to Judges@fmc.gov, by Wednesday May 15, 2024, at noon. The summaries should not exceed two pages in length. The parties must be prepared to discuss their respective positions regarding discovery, confidentiality, and protective order issues at the conference. An order will issue sometime after the conference and will include an amended schedule for discovery and briefing. Until an amended scheduling order issues, the parties should adjust all discovery deadlines by two weeks.

Accordingly, the parties are hereby **ORDERED** to follow this interim schedule:

May 30, 2024	Depositions of fact witnesses may begin to be noticed
May 31, 2024	Complainant to serve initial expert reports, if any
June 7, 2024	Respondent to identify rebuttal expert witnesses, if any
June 24, 2024	Expert depositions may begin to be noticed, if any
July 8, 2024	Respondent to serve rebuttal expert reports, if any
July 22, 2024	Last day to serve supplemental written discovery requests

August 5, 2024	Parties serve objections and responses to supplemental written discovery requests
August 9, 2024	Complete depositions of fact and expert witnesses
August 9, 2024	Close of discovery



Linda S. Harris Crovella
Administrative Law Judge